Voluntary Maximum Aid Payment Exclusion	Number	Page
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Revision Date:
October 1, 2025

Background:
Effective November 1, 2018, Senate Bill (SB) 380 allows customers to elect to receive full child support payments for a step/half-sibling in lieu of CalWORKs for that child. Customers have the choice to opt in or out of this policy. Prior to November 1, 2018, customers were not allowed to keep child support payments received in lieu of CalWORKs.

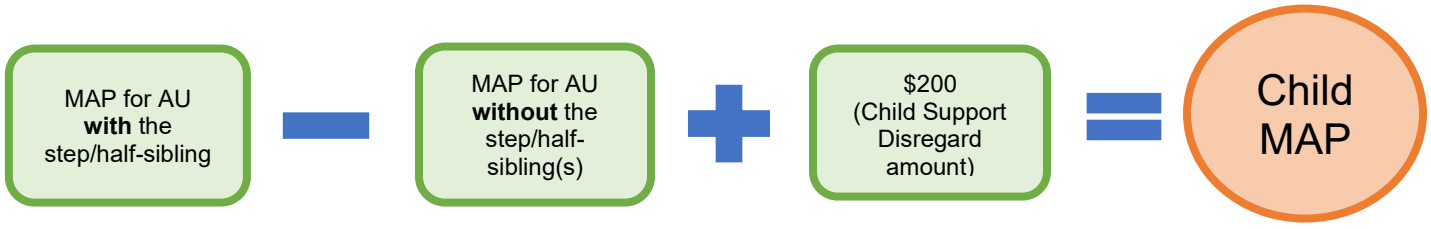
Purpose:
The purpose of this revision is to complete a sunset review and to renumber this section from CalWORKs Program Guide (CPG) section 44-300.H to 44-300.E. CPG section number 44-300.H becomes obsolete with the issuance of this material. This revision also includes clarification that child support does not need to be court ordered for the child to be excluded.

Policy:
Eligibility Criteria
An Assistance Unit (AU) may opt to exclude the needs of a step/half-sibling from the AU's Maximum Aid Payment (MAP), to keep the full child support payments made to that child, when all of the following apply:

- The step/half-sibling lives with at least one eligible child.
- The step/half-sibling is a child for whom child support payments are received.
- The amount of current child support received each month for the step/half-sibling is greater than the CalWORKs grant amount for that child (refer to the Child MAP section of this material).
- The customer requests in writing that the step/half-sibling not to be included in the MAP.

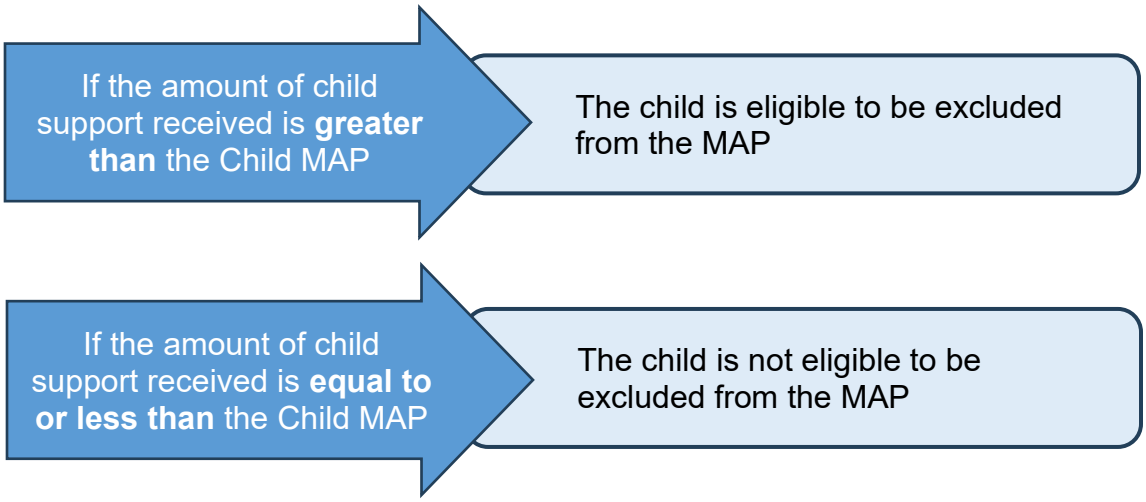
Note: If a verbal request is made, staff must explain that the request must be in writing. The customer must complete form CW 52 *SB 380 Informing Notice and Child Support Payment Opt-In Form.* Verbal request will not be processed.

Child MAP
The Child MAP is the amount used to determine if the monthly child support received by a child exceeds the CalWORKs grant amount that the child receives or would receive if approved at application. This amount is determined based on the MAP for the AU size, with the child included, minus the MAP for the AU without the child, plus the amount of the child support disregard.



Note: The child support disregard pertains to the number of children in the AU, not based on the number of children receiving child support payments. Therefore, there would always be at least two children

considered when identifying the appropriate child support disregard amount as an SB 380 child must reside with a CalWORKs eligible child.



The child support disregard is only considered in the Child MAP calculation for the first child because the AU receives the child support disregard only once per month regardless of the number of child support payments received in that month. The Child MAP calculation is available for staff in Desk Aid SB 380 Child MAP Charts, located in the CalWORKs SharePoint under the Desk Aid section. This desk aid provides the Child MAP for one and multiple children participating in SB 380 based on the AU type (exempt or non-exempt) and the AU size.

Note: The use of the child support disregard in the Child MAP calculation has no impact to the CalWORKs budget. The AU will still be entitled to the appropriate child support disregard amount in the CalWORKs budget if child support is collected/received/passed through for the eligible child in the AU.

Step/Half-Sibling's Needs

The step/half-sibling's needs are still considered for the family Minimum Basic Standards of Adequate Care (MBSAC) but removed from the AU's MAP amount. The child is still considered part of the AU and remains otherwise eligible for all other programs and services (Child Care, Special Needs, etc.).

Evaluations for SB 380 Criteria and Opt-In Effective Date

The step/half-sibling's exclusion is to be evaluated only at the following times:

- Application.
- Periodic report.
- Annual redetermination.

For applicants who those to opt in, the effective date to exclude the step/half-sibling is the date CalWORKs is approved. For recipients who choose to opt in, the effective date is the following month after the request was made if timely and adequate notice can be provided. If there is not enough time to issue a timely notice, the exclusion will start in two months. For example, if the customer requested on 2/23/2025, the effective date to exclude the child is 4/01/2025.

Reminder: Customers also have the option to waive the 10-day notice requirement to decrease their benefits. A signed waiver form is required before benefits can be decreased without timely notice.

Step/Half-Sibling Verification at Application

If the customer requests to exclude a step/half-sibling at application, the child's required verifications are still to be provided, within the current timeframes, as if the child were being included in the MAP. This will assist in meeting a 10-day timeframe of adding the child back to the MAP determination, if a future request is made mid-period.

The application will not be delayed, nor denied, while gathering the step/half-sibling's verification. The only documentation required prior to granting the request is verification that the child is related within the 5th degree of kinship to the caretaker relative, they are a step/half-sibling of an eligible child who is living in the same home, and the amount of monthly child support received for the child will exceed the amount of CalWORKs the child would receive if included in the AU's MAP determination.

Note: Other verifications may be needed for other program eligibility determinations, such as Medi-Cal eligibility and CalFresh budgeting.

Adding Back the Step/Half-Sibling to the MAP Determination

When a step/half-sibling is excluded from the MAP, the child can only be added back to the MAP determination at any of the following times:

- Periodic report.
- Annual redetermination.
- Mid-period report when the customer voluntarily reports that the child support payments have decreased or ended **and** the customer requests the child be added back.

The request to add the child's needs back to the MAP may be made on the SAR 7 (Eligibility Status Report), SAWS 2 Plus, AR 3 (Mid-Year Status Report AR/CO AUs), SAR 3 (Mid-Year Status Report SAR AUs), a written statement, or verbally reported by the customer. Verbal requests must be documented in Journal Entry, explaining the request and reported change (loss or decrease) of child support income.

If the request is made at SAR 7 or annual redetermination **and** there is no decrease or loss of the child support payments, the child will be added effective the first of the month following the request date.

If the request is made at mid-period:

- The child will be added the month in which the decrease or loss of child support income was reported.
- Verification of the loss or decrease of child support income is needed.
- The grant will be increased within 10 days after receipt of the verification of the loss or decrease of the child support income.

Child Support and Other Income Payments
In addition to child support payments, other types of income from the absent parent, such as Social Security Administration (SSA)/Social Security Disability Insurance (SSDI), may be credited as child support by the Department of Child Support Services (DCSS).

Therefore, any child support payments and other income coming from the absent parent (e.g. SSA/SSDI), regardless if the payment is received separately or combined, if the total amount received exceeds the Child MAP, the child may also be eligible to be excluded from the MAP.

Examples of income to be used to determine whether the child may be excluded from the MAP:
1. A step/half-sibling receives child support. The child also receives SSA from the custodial parent. Only the child support income would be compared to the Child MAP as the SSA income is from the custodial parent. Therefore, it is not considered child support.
2. A step/half-sibling receives both SSDI and child support from the absent parent. The amount from both sources would be compared to the Child MAP.

Treatment of Income and Resources
When a step/half-sibling's needs are excluded from the MAP determination, the child's income and resources are excluded. Any income of the child is considered to be intended for the care and support of that child, and not for the use of other members of the family.

Mandatory Inclusion Regulations
Mandatory inclusion regulations do not apply when the step/half-sibling is excluded due to the SB 380 regulations.

Cooperation with Local Child Support Agency (LCSA)
Cooperation with the LCSA is still required under SB 380, unless the customer meets existing good cause criteria. Refer to CPG 43-200 for more information on child support cooperation requirements.

Allocated and Unallocated Child Support Orders
If the child support is court ordered, allocated child support orders are required to determine SB 380 eligibility. Customers are required to provide copies of the current child support order and Monthly Statement of Collections and Distributions. Customers may contact the LCSA for information about child support amounts allocated to, and collected on behalf of, their children. Customers with unallocated child support orders will need to have their child support orders modified to reflect a per child support allocation.

Occasionally it is possible that the child support order might have been entered as unallocated, but it could be considered allocated if the information is included in an attachment to the court order using a calculation method or some other attached document.

Below are examples of allocated versus unallocated court orders:

Allocated	The court order lists three children and has a net figure for support for all three. There is no language stating that the order is unallocated nor non-severable. The order includes a calculation method or other program printout with support for

	three children, and the total sum matches the amount on the Judicial Council order form.
Unallocated	The court order lists three children and has a net figure for support for all three. There is no language stating that the order is unallocated nor non-severable. There is no attached support calculation.
Unallocated	The court order lists three children and has a net figure for support for all three. The order includes language that the order is non-severable. Attached to the order is a printout with support for three children, showing allocation amounts and the net support matches the order.

Staff must ask customers if they have any additional pages or attachments with their child support order if the copies submitted as verification are not clear. If the customer does not have their court order or is unsure if there are additional pages/attachments, staff may reach out to the LCSA. The LCSA will be able to provide the information either over the phone, through email, or by providing a copy to the customer. If staff accept the verification from the LCSA over the phone, they must thoroughly document in a Journal Entry the details of the conversation and amount of child support received as well as the name, position (title), contact information and office name/location of the LCSA providing the verification.

Child Support

SB 380 requires that the child support payment must exceed the Child MAP. Therefore, proof of the amount of child support paid is required to determine eligibility to exclude the child's needs from the AU's MAP determination. Child support does not need to be received from the LCSA/DCSS in order for the child to be excluded.

Proof of child support can be but is not limited to:

- An allocated (per child) court order for child support.
- Copies of checks received from the absent parent.
- A written statement signed by the absent parent.
- Monthly statements of child support sent by the LCSA/DCSS.
- A sworn affidavit (as a last resort) in the absence of any of the documents listed above.

Mid-Period Changes

Certain circumstances will require action to add the excluded child into the AU's MAP or discontinue the AU at SAR 7/annual redetermination if the child loses their eligibility to participate in SB 380. Examples of mid-period changes include, but are not limited to:

- MAP Increases – When MAP levels increase, the Child MAP will also change. When new Child MAP amounts are calculated based on MAP increases, the excluded child's amount of child support will be reviewed to see if eligibility for exclusion still exists. If the amount of child support received is less than the revised Child MAP, the next actions will depend on when the MAP change occurred:

Time Period	Action
AU's SAR 7 data month	The child's needs will be added back into the AU's MAP determination. The customer's request is not needed to add the child.

AU's month of annual redetermination	The child's needs will be added back into the AU's MAP determination. The customer's request is not needed to add the child.
Mid-period	The child **will not be added.** The amount of child support received will be re-evaluated at the next SAR 7 or annual redetermination.

- Penalties and Eligibility – Teens with school attendance penalties for whom child support is being received are eligible to participate under the SB 380 policy. These teens are members of the AU and receiving a grant amount of $0. Any amount of child support received for that teen above $200 (child support disregard) would qualify them for participation in this policy. Once the penalty is lifted and the grant amount increases for that teen back to an amount above $200, a re-evaluation of eligibility will be done by determining whether the amount of child support they receive exceeds the Child MAP. After re-evaluating the teen's eligibility, if they are no longer eligible to participate under this policy, action will be taken following the same policy as described above for MAP increases.

- Child Turning 18 Years of Age – A step/half-sibling's income is excluded as long as they remain a child/minor in their parent/caretaker relative's CalWORKs case. When the step/half-sibling is discontinued from the CalWORKs case due to reaching the age limit, that step/half-sibling is now considered an adult for purposes of CalWORKs eligibility, and any child support arrearages received by the customer on behalf of that child/teen is considered unearned income to the AU.

Impacts:

CalFresh Impact

Child support payments received for an eligible household member are treated as unearned income when determining CalFresh eligibility and benefit amounts.

Medi-Cal Impact

The step/half-sibling remains eligible for cash-linked Medi-Cal, as long as they are otherwise eligible. When the child is discontinued from CalWORKs, they will be reevaluated for Medi-Cal benefits.

Forms Impacts

- CW 52 - SB 380 Informing Notice and Child Support Payment Opt-In Form
  Customers must be informed of this policy in writing at application and each annual redetermination; and they must make their requests in writing - This form serves as notification to customers of the options available, and to allow them to submit their requests in writing
- M40-171D – Basic Approval – Partial
  This Notice of Action (NOA) informs the customer that the child's needs are not included in the AU's MAP determination as requested, but that the child is eligible for Medi-Cal and CalFresh
- M82-832H – CW 52 Request Deny
  This NOA is to be used to deny the request, to exclude a child's needs in the AU's MAP determination, because the child does not meet one of the specified eligibility criteria under SB 380
- M82-832G – Grant Change
  This NOA is to be issued when CalWORKs for a child has stopped because the customer has opted to receive the child support in lieu of CalWORKs

Procedure:

- SB 380 Regulations Summary Desk Aid
- SB 380 Child Maximum Aid Payment Charts
  These charts reflect the Child MAP by region, AU size and exempt/non-exempt AUs for single child and multi-child participation. They are available in Eligibility Essentials under CalWORKs – Desk Aids.
- Questions and Answers - Voluntary Maximum Aid Payment Exclusion
  Provides policy clarification regarding SB 380 under specified circumstances. They are available in CalWORKs SharePoint under the Questions and Answers section.

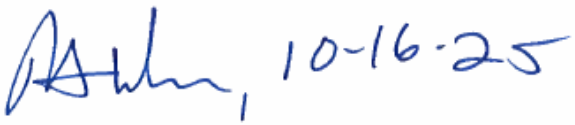
References:

Manual Policy and Procedures (MPP) 44-133.5(.51-.55), 80-820
All County Letter (ACL) No. 18-82, 20-109, 20-115

Sunset Date:

This policy will be reviewed for continuance by October 31, 2028.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services